

24STCV16664 24STCV16664

County: los-angeles

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Case Number: 24STCV16664 Hearing Date: July 16, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV16664

BENITO

ROJAS, AN INDIVIDUAL vs POLYMATH DEVELOPMENT GROUP INC, et al.

July

16, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT ANDREW MOLLINEDO'S MOTION TO VACATE ENTRY OF DEFAULT AND DEFAULT JUDGMENT.

RULING:

The Court grants the Motion.

The Court quashes service of the Summons and Complaint as to Defendant ANDREW MOLLINEDO.

Plaintiff is granted another 60 days within which to serve the Defendant.

Defendant to give notice.

I.

BACKGROUND

The Court incorporates by reference the Background section of the Minutes entered on October 23, 2025.

On May 13, 2026, ANDREW MOLLINEDO (Defendant), filed the Motion to Vacate entry of Default and Default Judgment, asserting Plaintiff's failure to serve the Summons and Complaint and substantive lack of merit of the case as against him.

Plaintiff opposes, counterarguing that the Registered Process Server's Declaration shows valid substituted service, and Defendant delayed approximately half a year after learning of the judgment before making the Motion.

II.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect...." A motion pursuant to Code of Civil Procedure section 473 must be made "within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken...." (Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 [quoting Code Civ. Proc., § 473, subd. (b)].) It

may be an abuse of discretion to grant relief under Code of Civil Procedure section 473 where there is unexplained delay of over three months before moving for relief. (Huh v. Wang (2008) 158 Cal.App.4th 1406, 1421, fn.4.)

“Section 473.5, subdivision (c) allows the court to set aside the default judgment if it finds the defendant's lack of actual notice in time to defend was not caused by the defendant's avoidance of service or inexcusable neglect.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 547.) A motion pursuant to Code of Civil Procedure section 473.5 must be made in a reasonable time, not beyond the earlier of two years after default judgment entry, or 180 days after service on the party of written notice of default or judgment entry, must have evidence that lack of notice was not the result of moving party's inexcusable neglect or avoidance of service, and must include a proposed pleading. (Code Civ. Proc., § 473.5.)

“When a defendant argues that service of summons did not bring him or her within the trial court's jurisdiction, the plaintiff has ‘the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.’” (American Exp. Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 387.) (Underscoring added.) Complainants have the initial burden to evidence valid statutory service of a summons and complaint. (Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439-1440; Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 794.)

Court findings as to conflicting proof regarding whether a summons and complaint were properly served are upheld if based upon substantial evidence. (Stafford v. Mach (1998) 64 Cal.App.4th 1174, 1182.) A trial court has discretion as to whether to accept a process server declaration, or contradictory evidence, in deciding whether service of a summons and complaint was validly accomplished. (Am. Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390; Khourie, Crew & Jaeger v. Sabek, Inc. (1990) 220 Cal.App.3d 1009, 1014 [“Sabek points out that it introduced evidence, in the form of declarations, that tend to contradict the declaration of Murray Woods.... The trial court, however, was entitled to believe Woods [the process server].”].)

A filed proof of service

creates a rebuttable presumption that service was proper if it complies with applicable statutory requirements. (Floveyor Internat. v. Superior Court (1997) 59 Cal.App.4th 789, 795.) Where service was by a registered process server, Evidence Code section 647 applies to accord a presumption as to the facts stated in the proof of service. (Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1425-1427.)

As to defendants

invalidly served with summonses and complaints, court lack personal jurisdiction, and default judgments are void and subject to being set aside. (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1200; Lee v. An (2008) 168 Cal.App.4th 558, 564.) Default judgments entered against defendants who were not served with a summons and complaint in the manner prescribed by statutes, are void, notwithstanding the defendants' knowledge of the action. (County of San Diego v. Gorham (2010) 186 Cal.App.4th 1215, 1226.) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction." (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544. Accord, Renoir v. Redstar Corp. (2004) 123 Cal.App.4th 1145, 1152.) "[A] section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation." (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225.)

However, a Court would

err in ruling on the merits of a complaint in deciding a motion to quash a summons made on the ground of defective service. (Nelson v. Horvath (1970) 4 Cal.App.3d 1, 5.)

III.

ANALYSIS

Defendant requests an

Order vacate Default entry and Judgment, essentially based on a Declaration about Defendant never having been served with the Summons and Complaint. Also, Defendant also argues extensively that the case lacks merit as against him.

Plaintiff responds that

the Proof of Service (Opposition, Exhibit 1) shows valid substituted service, which Defendant contests by his Declaration with no corroborating evidence, and Defendant unreasonably delayed. Plaintiff adds that the merits are irrelevant for this matter.

Defendant's Reply asserts
that Plaintiff:

1.

Fails to justify service at a mail
receiving entity, under Code of Civil Procedure section 415.20(c), as to which
the Process Server Declaration is silent.

2. Plaintiff

reports service at an address, but it is associated with the entity Defendant,
rather than the individual Defendant.

3.

The Motion was filed timely pursuant to
Section 473.5(a) that provides for the earlier of two years after entry of the
default judgment, or 180 days after service of a written notice that the
default or default judgment has been entered.

Code of Civil Procedure

"Section 415.20, subdivision (b), provides in part: 'If a copy of the summons
and complaint cannot with reasonable diligence be personally delivered to the
person to be served ... a summons may be served by leaving a copy of the summons
and complaint at the person's dwelling house, usual place of abode, usual place
of business, or usual mailing address other than a United States Postal Service
post office box, in the presence of a competent member of the household or a
person apparently in charge of his or her office, place of business, or usual
mailing address other than a United States Postal Service post office box, at
least 18 years of age, who shall be informed of the contents thereof, and by
thereafter mailing a copy of the summons and of the complaint by first-class
mail, postage prepaid to the person to be served at the place where a copy of
the summons and complaint were left.'" (Trackman v. Kenney (2010) 187
Cal.App.4th 175, 182-83. Accord American Exp. Centurion Bank v. Zara
(2011) 199 Cal.App.4th 383, 389.) Service of summons at a defendant's usual
mailing address includes a commercial post office box. (E.g., Hearn v.
Howard (2009) 177 Cal.App.4th 1193, 1203.)

"Notwithstanding

subdivision (b), if the only address reasonably known for the person to be
served is a private mailbox obtained through a commercial mail receiving

agency, service of process may be effected on the first delivery attempt by leaving a copy of the summons and complaint with the commercial mail receiving agency in the manner described in subdivision (d) of Section 17538.5 of the Business and Professions Code.” (Code Civ. Proc., § 415.20(c).) “[S]ection 415.20, subdivision (c) provides that substitute service may be effectuated on an individual by leaving a copy of the summons and complaint with a CMRA (commercial mail receiving agency) ‘if the only address reasonably known for the person ... is a private mailbox obtained through a commercial mail receiving agency.’ ” (Kremerman v. White (2021) 71 Cal.App.5th 358, 373 [“no evidence in the judgment roll that indicates whether the referenced statutory requirements were met.”].)

Here, Plaintiff offers an unregistered Process Server’s Declaration (Opposition, Exhibit 1) that includes nothing about (1) efforts to serve any address reasonably known other than the commercial mail receiving entity or (2) whether that location was Plaintiff’s address. Additionally, Plaintiff supports a finding that the address served is not his individual address, as he received no mail about summons service. (See, e.g., Motion, p.11, ¶ 5; Reply 5:11-27.)

Therefore, the Court finds that Plaintiff’s service of the Summons and Complaint is void, and need not reach issues about Defendant’s alternative grounds for relief.

IV.

CONCLUSION

“The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10.” (PNEC Corp. v. Meyer (2010) 190 Cal.App.4th 66, 71 [quoting Code Civ. Proc., § 581, subd. (h)], disapproved on other grounds by *DisputeSuite.com, LLC v. Scoreinc.com* (2017) 2 Cal.5th 968, 979. See also California Rules of Court, rules 3.110(b) [“The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.”]; 3.110(h) [“When a default is entered, the party who requested the entry . . . must obtain a default judgment . . . within 45 days....”]; and 3.110(f) [“If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to

show cause why sanctions shall not be imposed."].)

The Court grants the Motion,
but without prejudice to serve Defendant validly within an extended time of 60
days from entry of this Order.